

Siddesh @ Pappanna vs State By Town Police on 10 August, 2023

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CRL.RP.NO.701/2015

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 10TH DAY OF AUGUST, 2023

BEFORE

THE HON'BLE MR JUSTICE RAMACHANDRA D. HUDDAR

CRIMINAL REVISION PETITION NO.701/2015

BETWEEN:

SIDDESH @ PAPPANNA, S/O. LATE ANNEGOWDA,
AGED ABOUT 30 YEARS,
KOMBGATHI VILLAGE, MALLENAHALLI POST,
CHIKKAMAGALURU TALUK AND DISTRICT-577101.

...PETITIONER

(BY SRI. K. R. LINGARAJU, ADVOCATE)

AND:

STATE BY TOWN POLICE,
CHIKAMAGALUR, REP. BY ITS S.P.P,
HIGH COURT OF KARNATAKA, BENGALURU-560001.

...RESPONDENT

(BY SRI. K. S. ABHIJITH, HCGP)

THIS CRIMINAL REVISION PETITION IS FILED U/S.397
R/W 401 CR.P.C BY THE ADVOCATE FOR THE PETITIONER
PRAYING THAT THIS HON'BLE COURT MAY BE PLEASED TO SET
ASIDE THE JUDGMENT AND ORDER OF CONVICTION AND
SENTENCE DATED 18.11.2023 PASSED BY THE PRL. SR. C.J AND
C.J.M, CHIKKAMAGALURU IN C.C. NO.614/2011 AND ALSO THE
JUDGMENT DATED 9.1.2015 PASSED BY THE PRL. S.J.,
CHIKKAMAGALUR IN CRL.A.NO.418/2013.

THIS CRIMINAL REVISION PETITION, COMING ON FOR
FINAL HEARING ON 17.07.2023 AND THE SAME HAVING BEEN
HEARD AND RESERVED FOR PRONOUNCEMENT OF ORDER,
THIS DAY, THE COURT MADE THE FOLLOWING:

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CRL.RP.NO.701/2015

ORDER

This revision is directed against the judgment of conviction passed against the accused-revision petitioner in C.C.No.614/2011 on the file of Prl. Senior Civil Judge and CJM, Chikkamagalur, dated 18.11.2013 registered for the offences punishable under Section 392 of IPC which is confirmed by the Prl. Sessions Judge, Chikkamagalur, in CrI.A.No.418/2013 dated 09.01.2015.

2. The parties to this revision are referred to as per their ranks before the trial Court for the purpose of convenience.

3. That one Dr. C.K.Uma lodged a complaint on 18.05.2011 at 9 p.m. by appearing before the Sub-Inspector of Chikkamagalur town police station, stating that she is a Gynecologist by profession. On 18.05.2011 during evening hours at about 7.35 p.m., she went to emergency ward of District Government Hospital of Chikkamagalur, to attend the patient. When she was returning towards her residential quarters along with her sister Annapurna inside the compound wall of the residential quarters near the residential quarters of Shalini and Gracy being the nurses, one stranger came from behind aged in between 25 and 30 years and snatched the gold chain worn by her weighing 14.800 grams. She bombarded. By hearing her hue and cry, one Suresh husband of nurse Shiny and her sister Annapurna and Ravishankar came running towards her. The said person who snatched the golden chain by crossing the compound ran away. He was having a height of 5 ft. and was of black colour wearing blue Jeans pant and mixed black colour lining T-shirt. She can identify him. Including the pendent, the said gold ornament was weighing 14.800 grams worth Rs.25,000/-. With these allegations, a complaint came to be filed which was registered in Crime No.105/2011 of town police station, Chikkamagalur, for the offence punishable under Section 392 of IPC and FIR was prepared as per Ex.P.7. Thus, criminal law was set in motion. Complaint is at Ex.P.1.

4. During the course of investigation, Investigation Officer visited the scene of offence and prepared the panchanama. During the course of investigation itself, accused was arrested and at his instance, the snatched gold ornament was seized. Subsequently, it was returned to the complainant on identification.

5. It is the case of the prosecution that when accused was arrested, he gave his voluntary statement as per Ex.P.6 and based upon that, the said gold ornament was seized from his possession.

6. After completion of the investigation, the Investigation Officer has filed the charge-sheet against the accused for the aforesaid offence. Accused was produced before the Court and he was remanded to judicial custody. He was enlarged on bail subsequently.

7. After filing charge-sheet, the learned trial Court took cognizance of the offence, framed the charge against the accused for the offence punishable under Section 392 of IPC read over and explained to him in Kannada i.e., the language known to him. He pleaded not guilty and claimed to be tried.

8. The prosecution to prove the guilt of the accused, examined 13 witnesses i.e., PWs-1 to 13, got marked documents Ex.P.1 to Ex.P.8 and closed prosecution evidence.

9. Thereafter, accused was questioned under Section 313 Cr.P.C. so as to enable him to answer the incriminating circumstances appearing in the evidence of the prosecution. He denied his complicity in the crime. Did not chose to adduce any defence evidence on his behalf.

10. The learned trial Court after hearing the arguments and on perusal of the records, found the accused guilty for the offence punishable under Section 392 of IPC and sentenced him to undergo rigorous imprisonment for two years and fine of Rs.5,000/- with default sentence.

11. This judgment of conviction and sentence passed by the learned Prl. Senior Civil Judge and CJM, Chikkamagalur, was challenged by the accused by preferring an appeal in CrI.A.No.418/2013 before the Prl. Sessions Judge, Chikkamagalur. The first Appellate Court by judgment dated 09.01.2015 confirmed the judgment of conviction and sentence passed against the accused by the trial Court. This is how the revision petitioner is before this Court challenging both the judgments of the Courts below.

12. Heard the arguments of both sides.

Submissions of learned counsel for accused/revision petitioner:

13. It is submitted that in this case recovery panchas have been turned hostile. The very arrest of the accused person by the police is doubtful. There is material contradiction with regard to the arrest of the accused in the evidence of the police witnesses. If evidence of one police officer is accepted, the evidence of other police witness cannot be believed. He submits that accused is a innocent person and he has been falsely implicated in this case. In support of his submission, he relies upon various evidence spoken to by the witnesses and also the contradictions, omissions with inconsistencies in the evidence of the prosecution witnesses. He prays to allow the revision petition and acquit the accused for the aforesaid offence.

Submission of learned Addl. SPP

14. With all vehemence, the learned Addl. SPP submits that both the Courts have found accused guilty and it is a heinous offence against complainant in particular and Society in general. From the possession of the accused itself, the said gold ornament was seized being worn by the complainant at the time of alleged snatching. The evidence of the complainant and other witnesses do demonstrate about the involvement of the accused in the commission of the crime. This Court being the revisional Court cannot lightly interfere into the judgment of the trial Court and Appellate Court unless there is illegality and perversity. He prays to dismiss the revision petition.

15. Having considered the arguments of both the side, and on perusal of the records of this case, now we have to ascertain that was there any illegality or perversity committed by both the Courts below in finding the accused guilty or otherwise.

16. It is a case of robbery alleged by the prosecution. So far as robbery is concerned, it is defined under Section 390 of IPC. In all robbery, there is either theft or extortion. Theft is "robbery", if, in

order to the committing of the theft, or in committing the theft, or in carrying away or attempting to carry away property obtained by the theft, the offender, for that end, voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of instant wrongful restraint. Extortion is "robbery" if the offender, at the time of committing the extortion, is in the presence of the person put in fear, and commits the extortion by putting that person in fear of instant death, of instant hurt, or of instant wrongful restraint to that person or to some other person, and, by so putting in fear, induces the person so put in fear then and there to deliver up the thing extorted.

17. Section 390 of IPC speaks of punishment for robbery.

18. Thus, it is bounden duty of prosecution to prove the aforesaid ingredients of robbery. In this case, Ex.P.1 is pressed into service by the complainant to show that on 18.05.2011, at about 7.35 p.m., when she was returning to her residential quarters, in the District Hospital compound, near the residential quarters of Shalini and Gracy, the nurses of the said hospital, a person aged in between 25 and 30 years followed her, snatched her gold chain put in her neck with pendant weighing 14.800 grams worth Rs.25,000/- at that time. The said incident took place as per the complainant at about 7.35 p.m. on 18.11.2011. She lodged a complaint at 9 p.m. before the town police station, Chikkamagalur. Thereafter, the police visited the scene of offence on 19.05.2011 and prepared the panchanama as per Ex.P.2 in the presence of panchas.

19. PW-1 being the complainant, has spoken in line with the contents of the complaint. For the first time, she speaks in her evidence that because of snatching, it cut and a dollar remained with her. She tried to chase him but could not caught hold him. According to her evidence, at that time, her sister Annapurna was accompanying her. In her complaint, she has stated that after the incident of robbery took place, she bombarded and at that time, her sister Annapurna and others came running to her. By that time, the person who robbed the gold chain ran away.

20. She further speaks in her evidence that with regard to said robbery, she lodged a complaint as per Ex.P.1. After 3-4 days of filing complaint, police called her to police station stating that they have arrested the accused. There they showed the accused who was present before the Court on that day and stated that he is the person who committed the robbery. The accused produced the said gold chain.

21. In the cross-examination, she states that on that day at about 7.30 p.m. her sister was standing outside the emergency ward. The incident took place at about 7.30 p.m. From the hospital, her quarters was about 200 - 300 ft. away. In between the hospital and quarters, there exists a road running from Chikkamagalur to Hassan. By the side of the road, there is a compound having a good height of about 8 ft. to 10 ft. She further states that at the time of incident, no person was moving on the said road, but the vehicles were moving on the road situated by the side of the hospital compound. According to her, accused came from her behind and it was about 7.30 p.m. It was darkness at that time. Accused snatched her golden chain and ran way from behind and she has seen him. The scene of offence is about 10 - 15 ft. away from the compound. After she did hue and cry, within 5 - 10 minutes CWs-8 and 9 came there. She has denied all the suggestions directed to her.

22. PW-2 Dr.G.Nagaraj, was a pancha to scene of offence - Ex.P.2. He speaks with regard to his presence at the time of conducting the panchanama and he putting signature on the same. Except the denial, nothing is elicited from the mouth of this witness so as to disbelieve his evidence spoken in his examination-in-chief. Thus, from the evidence of PWs-1 and 2 coupled with the other evidence placed on record, it is proved that there was a robbery of gold chain worn by complainant on 18.05.2011 at 7.35 p.m.

23. PW-3 Annapurna C. K. being the sister of the complainant speaks that on that day herself and her sister complainant were moving towards their residential quarters about 7.35 p.m. near the residential quarters of Gracy and Shalini. At that time, one person came from behind and robbed the golden chain from the neck of complainant and ran away. Both bombarded as 'thief- thief'. At that time, one Ravishankar came there. Though they tried to catch hold him, he ran away. In her cross-examination, she states that before snatching the golden chain, she has not seen the accused and once, he started running after snatching golden chain, she turned and saw the accused and at that time he was 3 ft. away from her. She admits that near Azad park and post office, the traffic police were doing their duty at that time. They went to police station at about 8 p.m. PW-1 lodged the complaint. Thus, evidence of PW-3 also supports with regard to the robbery of gold chain worn by complainant. When the person was running in the darkness, was it possible for these PWs-1 and 3 to identify the accused as the person who committed the robbery has to be explained by the prosecution. PW-1 states that when she went to police station after 3-4 days, she saw the person who was shown as accused who committed the robbery. Then, she identified the accused as the person who committed robbery on her. It is not the case of the prosecution that the street lights or other lights were burning and they could very well identify the person. No such evidence has been brought on record from the mouth of these witnesses.

24. PWs-4 and 5 - Prasad and Raghavendra having cited as seizure panch witnesses to ExP.3. both have been turned as hostile. PW-6 Suresh was the person who reached the complainant and PW-3 when the said incident took place. According to the case of prosecution, he also chased accused but PW-6 evidence is silent to that effect. He too has been declared as hostile witness. Nothing worth is elicited from the mouth of PWs-4, 5 and 6 so as to disbelieve their version given in the examination-in- chief. Evidence of PW-6 can be accepted to the extent that he went to the scene of offence after parking his car and the people gathered there told him that there was robbery of gold chain belonging to complainant.

25. PW-7 - Ravishankar S. has come before the trial Court and deposed that on 22.07.2011, when he was in the house he heard the bombardment near his house. He came out of the house and noticed the presence of CW-1/complainant and at that time, it was told to him that her golden chain was robbed by the accused and people were chasing him and he also chased him. The people so chased him caught hold the accused and were bringing him. Police also came there. The police took him in a jeep. CW-1/complainant was searching her dollar in the said place and after search, she could get the pendant. If the evidence of PW-7 is compared with the evidence of PWs-1 and 3, altogether different evidence has been spoken to by this PW-7. As per the evidence of PW-1, the incident took place at about 7.35 p.m. but PW-7 says that on 22.07.2011, accused was caught hold by the people who committed the robbery of a gold chain belonging to complainant and he was handed over to the

police by the people.

26. It is stated by PW-7 in his cross-examination, on hearing the bombardment he came out of the house along with his wife and the male persons who gathered there, chased the accused. But, he ran away towards the post office. He saw the accused when he was running away. Accused was wearing black coloured jeans pant and black coloured T-shirt. Thereafter, he spoke to the accused in the police station. Police have not recorded his statement. Himself and other persons accompanying him lodged the complaint. Thus, even in the cross- examination also, he has given a quite contradictory evidence with that of PW-1 and PW-3.

27. PW-8 Shalini was a staff nurse and according to her, about 8 months' prior to giving her evidence at 7.30 p.m. she heard the sound of 'thief-thief'. When she came out, nobody was there. She has been declared as hostile witness. Nothing worth is elicited in her cross- examination.

28. PW-9 Dhanpal Naik was the police constable attached to Chikkamagalur town police station at the relevant time. As per his evidence, on 18.05.2011, he was deputed for traffic duties at P.O. Circle and Belur Circle. At 7.30 p.m., towards Azad park from P.O. circle, when he was so moving, one Dr. Uma i.e., PW-1 by opening the compound gate went inside the house and she was followed by woman constable Gehnoza. She heard the noise of Dr. Uma and at that time, when he went inside and enquired, Dr. Uma told him that one person ran away with gold chain towards P.O. Circle, therefore he chased him. He was followed by the said woman constable and Ravi Shankar. The person who was running was wearing blue jeans pant and white T-shirt. He was a short person. He ran away towards Mayur hotel. He advised her/PW-1 to lodge a complaint. If the evidence of PW-9 is compared with the evidence of other witnesses discussed supra, this PW-9 has given quite contradictory evidence to that of the evidence of PWs-1, 3 and PW-7.

29. PW-10, Vijay Kumar was goldsmith by profession and he has examined the said gold chain. He certified that it is a gold chain marked as MO.1 and it was half cut. Either PW-1 or PW-3 or any witnesses have not spoken that the said golden chain was really half cut. Evidence of PW-10 is quite contrary to the evidence of PWs-1 and 3.

30. PW-11 - K.T. Gehnoza was the woman head constable. She states that herself and PW-10 were deputed for traffic duties on 18.05.2011 at 7.30 p.m. On that day, both were deputed for searching and apprehending accused in Cr.No.105/2011 i.e., the present crime. AS per the case of prosecution, the said incident of robbery has taken place at 7.30 p.m. on 18.05.2011 but as per the evidence of PW-11 in Cr.No.105/2011 they were deputed for searching and apprehending the accused. The said Cr.No.105/2011 was registered based upon the complaint filed by PW-1 at 9 p.m on 18.05.2011. Thus, the evidence of PW-11 is against the content of Ex.P.1 complaint.

31. She further has stated in her cross-examination that on that day she was on bando-bast duty near Kalamandira and at that time, she noticed running away of accused from Azad park toward the labour ward. Herself and PW-10, caught hold the accused. When she caught hold accused was holding golden chain in his hand. Thus, evidence of PW-11 also appears to be contradictory in nature to that of the fact brought on record by the prosecution.

32. PW-12 S. Vijay Prasad, being the Investigation Officer states that he took up the investigation on 19.05.2011 and on 25.02.2011, PWs-9 and 11 produced accused before him. He arrested him and recorded his voluntary statement. PWs-9 and 11 never say that they apprehended the accused on 25.02.2011. As per the evidence of this PW-12, in view of the voluntarily statement of accused in the presence of panchas, he seized the said golden chain. The panchas were Prasad and Raghavendra who were examined as PWs-4 and 5. But, PWs-4 and 5 have been turned as hostile. It has come in the evidence of PW-12 that after 4 days of the incident, on 22.05.2011 he arrested accused. Thus, the evidence of PW-12 is quite contrary to the evidence of his own official witnesses i.e., PWs-9 and 11.

33. PW-13 Ravi was the PSI who received the complaint from PW-1 on 18.05.2011. As per his evidence, at 11 p.m. when he was in the police station, Dr.C.K.Uma came to the police station and lodged the complaint as per Ex.P.1. Based upon that he registered the crime in Cr.No.105/2011 and he conducted part of investigation.

34. Thus, on perusal of the evidence of all these witnesses, we find contradictory evidence in the evidence of complainant - Dr.Uma, her sister Annapurna and also with regard to the seizure of the gold ornament i.e. police officers.

35. As per the voluntary statement Ex.P.6, accused was the resident of Kombugatti, Mallenahalli post. As he was addicted to bad vices of drinking alcohol and smoking, and thereafter, he hatched plan to commit robbery or theft. He committed the robbery and he was caught hold by the police. As per his statement, after committing robbery, he went to his village and thereafter, he came to Chikkamagalur. The police officials have not at all stated anything with regard to the contents of this voluntary statement. Thus, the police witnesses themselves have given a clear go bye to the contents of Ex.P.6. Thus, in this case, if the ingredients of robbery are applied, no doubt there was a robbery of the gold chain of the complainant and her chain was snatched away by some person. To that effect, she lodged a complaint. From the evidence of other witnesses, it is not very much clear that it was accused and accused only who committed the robbery. After his arrest, no steps were taken by the Investigation Officer to conduct identification parade so as to get identified the accused as the real culprit. Such an evidence is lacking in this case.

36. It is settled principle in criminal jurisprudence that, it is the duty of the prosecution to prove the guilt of the accused beyond reasonable doubt to the hilt. Even if a slightest doubt arises in the case of prosecution, by proving the chain of circumstances with regard to the commission of the offence, then only the accused can be held to be guilty. But, in this case, we find material contradictions, omissions, inconsistencies and discrepancies in the evidence of the prosecution witnesses which have not been properly explained by the prosecution. The learned trial court and the first Appellate Court though had sufficient material showing the aforesaid lacuna in the case of the prosecution, but have hurriedly believed the evidence of complainant - PW-1, her sister Annapurna - PW-3 and the evidence of the Investigation Officers and found the accused guilty which is improper. Therefore, we find that both trial Court and the first Appellate Court have not properly appreciated the evidence placed on record and have wrongly held the accused guilty which is incorrect. Therefore, the interference is very much required in this revision by this Court with regard to the perversity and illegality committed by the trial Court in finding the accused guilty. Consequentially, it is held that

accused is not guilty of the offence punishable under Section 392 of IPC and he has to be acquitted by giving benefit of doubt.

37. In view of my foregoing discussion, the revision petition succeeds and deserves to be allowed. Resultantly, I pass the following:

ORDER

(i) Revision petition filed by the revision petitioner/accused under Section 397 read with Section 401 of Cr.P.C. is allowed.

The judgment of conviction and order of sentence passed in C.C.No.614/2011 dated 18.11.2013 by the Prl. Senior Civil Judge and CJM, Chikkamagalur and confirmed in CrI.A.No.418/2013 dated 09.01.2015 by the Prl. Sessions Judge, Chikkamagalur, are hereby set aside.

(ii) Accused is acquitted of the charge punishable under Section 392 of IPC. His bail bonds stands cancelled. He is set at liberty.

(iii) Fine amount if paid by the accused shall be refunded to him digitally after collecting necessary document by the trial Court, forthwith.

(iv) Office to send the copy of this order to both the Courts below for reference along with trial Court records as well as Sessions Court records forthwith.

Sd/-

JUDGE Jm/-